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SCHOOL OF LAW

THE POWER OF REGIONAL COURTS IN ADJUDICATING CRIMINAL MATTERS UNDER ETHIOPIAN LEGAL SYSTEM

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Acronyms

- FDRE-The Federal Democratic Republic of Ethiopia
- HPR-The House of people representatives
- HOF-House of Federation
- P-Page
- PDRE-Peoples Democratic Republic of Ethiopia
- Proc-proclamation
- SNNP-Southern Nation Nationalities and people

Abstract

This thesis looks into the criminal adjudicative jurisdiction of Regional State Courts under FDRE Constitution and other statutory legislation's. Thus this thesis investigates the legal or constitutional basis of regional courts to adjudicate criminal matters. Unlike criminal legislative jurisdiction the adjudicative jurisdiction is decentralized to regional states. However, there is inadequacy of law pertains to adjudicative jurisdiction of courts. Neither the constitutional nor other statute is clear with regard to the principle of delegation and concurrency of power. The respective regional laws by itself is unclear with regard to the apportionment cases among states courts at each hierarchies.

To this end the research employed qualitative research method and both primary and secondary sources of data are used. Primary data include interview with judges of Oromia Supreme Court (Eastern Wollega Division), East Wollega High Court judges and GutoGidaWoreda Court judges. Besides an interview will be conducted with legal scholars Wollega University. Secondary sources such as FDRE Constitution, federal and regional legislations, books, commentary are analyzed. Finally, the researchers analyze the data and thereby come up with findings that regional courts has power to adjudicate criminal matters by delegation and concurrency with federal government.

Chapter One

Introduction

1.1 Background of the study

Unlike unitary form of government, a federal system is characterized by the existence of two tiers of government-the federal government and states-which are also independent within their respective jurisdictions and autonomous from another, with the constitutionally granted distribution of powers between them. This is one ground for the differentiation of unitary and federal forms of governments. Ethiopia introduced a Federal forms government with the adoption of 1995 Constitution named as the Constitution of the Federal Democratic Republic of Ethiopia.

The constitution comes up with the provisions dealing with the distribution of powers between the tiers of governments. i.e. the Federal and States governments. Judicial competence is among the powers that are distributed between those tiers. The preposition holds true for criminal laws as well. This distribution of powers among the two layers of government in the aspect of adjudicative provided in the constitution and other statutory legislations is not clear enough to identify the criminal jurisdiction of the two orders of governments.¹

With this general overview in mind, the thesis discusses the scope of the power of judicial organs of states government in detail manner. Accordingly an attempt will be made to identify how states courts adjudicate criminal cases as per the constitution and other statutory legislations and how they apportion or assume among levels of courts at each hierarchies.

1.2 Problem Statement

The FDRE Constitution is one source to understand how powers is divided between the Federal and Regional governments. As enshrined under the provision of the Constitution exclusive power of the Federal government is provided under article 51 and residual power is given for respective Regions under article 52 of the Constitution. The provision is not specify the legislative, executive and judiciary aspect of those powers.² Judicial power is among the power

¹AssefaFiseha Federalism, Teaching material, Legal Research Institute,2009, Addis Ababa,p.100,101.

²FDRE Constitution, Proclamation No.1/1995,Addis Ababa,21staugust ,1995,Article 51,52

that is divided between the Federal and Regional governments. The Constitution states that the Federal Supreme Court has a final and highest judicial power over Federal matters and State supreme courts has a final and highest judicial power over State matters.

However it is not clear what is federal matters and state matters. There is no list of matters under the FDRE Constitution to show what matters are federal and what matters are state matters. The constitution has provided for Federal government the enactment of criminal laws as articulated under article 55(5) of the Constitution. It is important to ask whether criminal adjudication power is given for the federal or not or whether Regional courts can adjudicate criminal matters without having power to enact criminal laws.³

On the other hand the Constitution empowers Regional courts to adjudicate criminal matters by way of delegation under article 80 of FDRE Constitution⁴. This provision also creates confusion hence the caption of provision states concurrency of judicial powers which has different effect. This Constitutional provision devoid of States High courts and Supreme courts to have inherent power to entertain criminal cases and States first instance courts to adjudicate criminal matters at all but practically speaking they adjudicate criminal cases.

Below the constitution, there are legislations which govern the criminal jurisdiction of Federal and Regional Courts. The Federal courts establishment proclamation No.25/1996 under article 4 enumerate the criminal jurisdiction of Federal courts⁵. The question is whether the matters which are not governed under this provision are within the jurisdiction of Regional states courts or not. And whether the federal proclamation has constitutional ground to determine the power Regional courts to adjudicate criminal matters. Besides, it is also vague whether the power of adjudication of crime is exclusive to Regional courts or shared power among courts of both tiers of governments not. Finally, it is necessary to investigate regional laws on the issue at hand. Thus, since the issue is blurred and researchable, under this research, the researchers have studied the above problem.

³ Ibid at Article 55(5)

⁴ Ibid at article 80(4)

⁵ Federal courts Establishment proclamation No 25/ 1996 Article 4, Exclusive power of Federal courts

1.3 Objectives of the study

1.3.1 General objective

The overall objectives of this study is to investigate the judicial power of the Regional states courts to adjudicate criminal matters.

1.3.2 Specific objectives

In line with the above general objectives the specific objectives of this study is :

- To show the power of the Federal government on adjudicating criminal matters.
- To identify how judicial organ are structured at Federal level.
- To show how Regional states courts are structured and share criminal adjudicative power among them selves.
- To show the legal basis of regional courts jurisdiction to adjudicate criminal matters.

1.4 Research Questions

The followings are some of the questions of researchers.

1. Does Regional courts adjudicating criminal matters is dejure or defacto? .
- 2.Does Regional courts have inherent or delegated criminal adjudicative competence?
- 3.Are the Ethiopian constitution and other subsequent legislations are clear enough in distributing judicial power among tiers of government?
- 4.Does the regional legislations are sufficiently apportion the criminal adjudicative competence among levels of courts?

1.5 Methodology

The study, methodologically, designed to be carried out from the perspective of legal analysis and it is library-based or document analysis in which two sources of data will be analyzed.

➤ primary sources

A) Interview

For clear understanding of the power of regional courts in adjudicating criminal matters and the apportionment of cases among regional courts at each level we are going to conduct interview with some legal practitioners.

B) Laws and documents

In this respect, we are going to explore or analyze FDRE constitution, Federal as well as Regional proclamations which are related to our subject matter of study.

➤ secondary sources

For the better understanding of the subject matter of our study and find way out for the problems identified secondary sources like journals, senior thesis papers, books which are significant for our study will be used.

1.6 Scope of the study

The study focuses on the criminal adjudicative power of states courts. As a matter of clarifying this power the general overview of judicial power and structure of courts in Ethiopia will be discussed in relation to constitution and other statute. The Federal courts establishment proclamation no.25/1996 will be analyzed in detail to locate the Regional courts competence to entertain criminal cases. Once Regional courts assume jurisdiction how the matter is apportioned or assumed among courts at each hierarchy will be discussed. The study also touches the Oromia regional courts re-establishment proclamation no 141/2000 as matter of convenience.

1.7 Significance of the study

- ❖ The study is used as a source of information directly or indirectly for different organs of government in general and the judiciary organ in particular.
- ❖ It contributes to further in –depth the research work on the same subject matter.
- ❖ It encourages the government to enact clear law which gives states courts power to adjudicate crime.
- ❖ It may be used as source of information for researchers, teachers and students.

- ❖ It encourages the government to formulate appropriate policy in relation to criminal adjudicative power of Regional courts.

1.8 Limitation of the study

This study is going to be undertaken within a limited time of not more than two months. The researchers will spend much time to establish a good understanding about the subject matter of study. Since the issue is sensitive and broad the participants/researchers are going to spend more time and efforts.

The other limitation is related to the financial capacity of researchers. Since there is no financial assistance granted for the undertaking of this study, we may be unable to cover the costs and expenses so incurred in the duration of doing all these activities.

1.9 Organization of the study

The study is composed of four chapters. Chapter one, the introductory part presents the background, objectives, significance, research questions, and statement of problem, limitation, methodology and scope of the study.

Chapter two is devoted to discuss the general overview of judicial powers and structure of courts in Ethiopia. Under this chapter we discuss the judicial power and structure of courts both at Federal and Regional levels. We also trace back to traditional court structure and modern court structure.

Chapter three of the study discusses the division of criminal adjudicative power between federal and regional governments. Under this chapter we discuss the constitutional as well as the statutory basis of division of criminal adjudicative power between federal and Regional courts. While discussing this power the delegation and concurrency principle in judicial power will be seen in detail. The last but not the least the State first instance courts to entertain criminal matters will be seen in detail.

Chapter four of the study is about conclusion and recommendation with regard to what has been discussed in the above studies.

Chapter Two

General overview of Judicial Power and Structure of Courts in Ethiopia

Introduction

Before looking into the current power and structure of judicial power it is important to highlight the major historical issues associated with the judiciary. Thus, under this chapter first an attempt is made to look into some historical issues. Then we will see the same issue in light of the FDRE constitution.

2.1 The Judiciary before the Inception of FDRE constitution

Before 1990's the judicial system in Ethiopia was of monolithic structure reflecting the unitary system of government. During that time the court structure was featured by the fusion of the judiciary with administrative function of state⁶. At that time there is no systematically organized court structure or uniformly applied procedural laws. This was primarily because of absence of expertise. Besides, the existence of regular courts there are semi-judicial bodies which has limited jurisdiction and established for particular purpose⁷.

After 1991 the Transitional government of Ethiopia was entrusted with the task of paving the way for the establishment of federal state structure⁸. The Transitional government charter establishes central government on one hand and national regional self-government on the other. But since the country was ruled only by the charter that is not by Constitution the country during this period was exercising defacto federalism⁹. Accordingly there are three hierarchies of courts. Those are: The Central Supreme, High and First Instance Courts¹⁰. The jurisdiction of the Transitional government central courts has been exhaustively enumerated under article 5 of the proclamation No 43/1993. It lay down the general judicial jurisdiction of the three tiers of courts- The Supreme, High and First Instance Courts: both civil and criminal cases. Therefore it can be inferred that those not listed under this provision are left for the national regional self-governments.

⁶ AberreJembere, WoldtenseyWoldemelak, An Introduction to Legal History of Ethiopia, Addis Ababa, 2011

⁷ Ibid at p.2011

⁸ The Transitional Period Charter of Ethiopia 1991, Federal Negarit Gazeta Year 50 No 1, Cited By Wondwosson at 278.

⁹ WondwessonDamisse, Ethiopian Criminal Procedures, Addis Ababa, September, 2012 at p. 279.

¹⁰ Article 3 of Proclamation No.40/1993.

2.2 Organization of Judiciary under FDER Constitution

In Ethiopia with the transitional government and the advent of federalism, the so long standing history of Unitarianism in the country to a new federal arrangement was officially proclaimed. Through the adoption of the new constitution a federal system of government was established all over the country and the adoption of this system of government greatly changed the structure of courts and judicial powers.

The FDRE constitution proclaims that, judicial power both at Federal and Regional levels is vested in the courts¹¹. Both the Federal and the Regional governments are endowed with their respective structure of courts tiered along three layers-the supreme distinctive jurisdictions of their own and different places of sitting. Although the constitution under article 79(1) states that judicial powers both at federal and regional levels are vested in the courts, the plain reading of other provision of the constitution empowers other bodies or institutions to exercise judicial functions¹². Here it is important to distinguish between regular courts and institutions empowered to exercise judicial functions.

Under art. 37 (1), the FDRE constitution stipulate that everyone has the right to bring justifiable matter to, and obtain decision or judgment by a court of laws or any other competent body with judicial power. The phrase any other competent body with judicial power justifies the establishment of other bodies or institutions with judicial powers out of regular courts.

Additionally Art.78(4)of the constitution states that as special or ad hoc(temporary) courts which take judicial powers away from the regular courts or institutions legally empowered to exercise judicial functions and which do not follow legally prescribed procedures shall not be established.

From cumulative reading of article 34(5) and article 78(5) of the FDRE Constitution also, it can be inferred that the HPR and State Councils have constitutional power to establish or give official recognition to religious and customary courts that had state recognition and functioned prior to the adoption of constitution shall be organized on the basis of recognition accorded to them by constitution¹³.

¹¹Supra note 2 at Article 79(1)

¹²WakumaTlahun, The Criminal Jurisdiction of Regional State of Ethiopia, Submitted in Partial Fulfillment of the Requirements of Bachelor of Law(LLB) at Faculty of Law, St Mariam University, July 2008 at P.13

¹³ Supra note 2 at Article 78(4)

In sum, as per the FDRE constitution judicial power can be given to regular courts, via federal or regional law. Such power also can be given to other bodies under law obliging them follow due process or legally prescribed procedures. Practically, there is one Federal Supreme Court with nationwide jurisdiction and the Federal High court and First Instance courts are sitting in Addis Ababa and Dire Dawa. But recently, based on the power given to House of People Representative by the constitution, they established federal high and federal first instance courts in five Regional states. Namely, the Regional state of Gambela, Benishangul Gumuz, Afar, SNNP and Somali.¹⁴ At regional level also there are region courts having judicial competence namely state supreme, high court and woreda courts. There are also institutions or bodies (other than regular courts) that currently exercise judicial powers. These include labor Relation Board, Tax Appeal Commission, Civil Service Tribunals, and Privatization Agency and its Board and Sharia Courts.

2.3 Judicial Power Division between Federal and Regional Governments

Judicial power is the power to decide and pronounce a judgment and carry it into effect between persons and parties who bring a case before it for decision. The FDRE Constitution the first source to understand the division of judicial power between federal and regional governments. In addition to the constitution there are also proclamations passed by the federal and the regional government which deal with the issue of division of judicial power between the federal and regional courts.

2.3.1 FDRE Constitution

The FDRE constitution attempts to divide powers between both tiers of government. It assigns parts of it to the central governments and other part to the regions. Article 51 provides an exhaustive lists of matters over which the federal government has exclusive power and Article 52 provides a list of some matters over which regional state have exclusive powers and grants the residuary powers to the regional states. Accordingly, the Constitution divides judicial powers between the federal and regional states. Article 80(1) of the Constitution, by empowering the federal Supreme Court to have final and highest say over Federal matters, implies that federal courts have judicial power over federal matters. Similarly, article 80(2) of the constitution, by

¹⁴Sileshi Zeyohannes, Constitutional Law II, Teaching Material, sponsored by Justice and Legal Research Institute, 2009, at P 98.

empowering state supreme court to have the final and highest say on state matters, implies that regional state courts have judicial power over state matters. However the constitution is not clear as to what constitute federal matters and state matters which other federal law try to define.

FDRE Constitution under article 78(2) and article 80(1) which state the supremacy of federal Supreme Court with regard to federal judicial authority and the other inferior levels of courts (federal high court and Federal first instance courts) are established by HPR if the house deems it necessary. Indeed, the constitution under article 78(3) and article 80(2) states that the state shall establish state Supreme Court, high court and first instance courts. This constitutional provision reveals that, Ethiopia follows the dual court structure.

However the existence of this parallel system of court does not imply each set of courts whether Federal or regional courts exercise exclusive judicial power in Ethiopia. This paves the way for the existence of shared judicial power. As far as Ethiopian courts shared judicial power is concerned there is two views¹⁵. The first view holds that dual court structure is strictly taken both under the constitution and the proclamation issued¹⁶. According to this view civil cases or criminal cases fall either before exclusive Federal court or exclusive regional states courts. Hence they conclude that there is no case of shared or concurrent judicial power.

The other view is that despite the laws silence there is still shared or concurrent judicial power¹⁷. As spelt out under the Constitution there some federal laws which are not governed under the proclamation. Thus are: labor cases, commercial code and the same holds true for the penal code (Article 55(5)). We know also for certain that the state courts do adjudicate criminal cases in the regular discharge of judicial duties, *not in their delegated powers*¹⁸. The fact that the federal Supreme Court does also review state cases when it discovers errors of law also suggests the existence of shared judicial powers. As a result despite the apparent parallel existence of courts, like other powers, there are shared judicial powers.

¹⁵Assefa, Supra note at 1, p.260

¹⁶AbebaMulatu the court system and questions of jurisdiction under FDRE Constitution and proclamation No.25/1996.

¹⁷Assefa, Supra note at 1, p.260

¹⁸Sileshi, Supra note at 14, p. 98.

2.3.2 Other legislations

As indicated above, FDRE constitution provides that the federal Supreme Court shall have the highest and final judicial authority over federal matters¹⁹. It also states that the State Supreme Court shall have the highest and final judicial power over state matters. The Constitution then vaguely leaves what constitutes federal matters, which appear to be the key for the allocation of jurisdiction between federal and state courts.

Even though the constitution does not define what constitute federal matters and state matters, it is defined under the proclamation that establishes federal courts²⁰. As per the proclamation the *common* jurisdiction of federal courts is stipulated as follows: federal courts shall have jurisdiction over, firstly, cases arising under the Constitution, federal laws and international treaties. Secondly, over *parties* specified in federal laws and Article 5 enumerates federal courts shall have jurisdiction over the following cases, making the parties more specific: cases to which a federal government organ is a party; suits between persons permanently residing in different regions; cases regarding the liability of officials or employees of the federal government in connection with their official responsibilities or duties; cases to which a foreign national is a party.

The federal courts also have jurisdiction over *places* specified in the constitution or in federal laws. Article 3 sub 3 specifies that federal courts shall have judicial power in places specified in the constitution or in federal laws and traditionally all cases arising in Addis Ababa and Dire Dawa fall into this category. According to the new proclamation that sets up parallel federal courts across the country, federal courts will also exercise jurisdiction over cases arising in other places of the country²¹ in which the HPR establish federal high and first instance courts like Gambella, Somali, BenishangulGumuz, Afar and SNNP. Therefore the proclamation allocates jurisdiction to federal courts on the basis of three grounds: *laws*, *parties* and *places*²².

On the other hand the regional states enact laws to govern the jurisdiction of their own courts. For instance the regional state of Oromia enact proclamation that define the power of courts at

¹⁹ Supra note 2 at Article 78(2)

²⁰,Supra Note 5 at Article 3

²¹Sileshi, Supra note at 14 p.98

²² supra note 5 at Article 3

each hierarchy. To this end the Oromia regional court re-establishment proclamation No.141/2008 defines the civil and criminal jurisdiction of regional courts

Chapter Three

Division of Criminal Adjudicative Power in Ethiopian Federation

Introduction

In the preceding sections we have been looking at the division of judicial power between federal and regional governments. In this chapter an attempt will be made to discuss the division of criminal adjudicative jurisdiction between the federal and regional states courts; how criminal cases are entertained by the dual structure of the courts and an emphasis also going to be placed on whether the three levels of courts have a criminal jurisdiction and how they would assume it.

3.1 Criminal Jurisdiction of Courts under FDRE Constitution

The FDRE Constitution stipulate that federal matter are fall under the jurisdiction of federal courts and state matter are fall under the jurisdiction of state courts. However the Constitution does not clear as to what constitute federal matter and state matters. The Constitution specified the power of federal government under article 51 and under Article 55(1) it empowers the HPR to legislate on the areas of jurisdiction that are within the competence of the federal government²³.

Among other things, Article 55(5) of the constitution empowered the HPR to enact criminal code²⁴. Besides, the power to enact criminal code also given to Regional States which is on matters not specifically covered by the federal legislation. In practice, despite the existence of criminal law legislative power, so far no regional state come up with its own comprehensive criminal code.

The core issue here is the extent of power contemplated under the constitution for both tiers of governments. In relation to this Wondwesson argues that this provision is interpreted in a way that limit the power of HPR ,to enact criminal code only on federal matters listed under article 51 of the constitution²⁵. He states that all matters not related to those listed under article 51 are state matters by virtue of article 52;so that the federal legislative organ has no power to legislate over them. From the argument forwarded by Wondwosson it become clear that federal court exercise

²³25 Supra note 2 at Article 55(1)

²⁴Ibid at 55(5)

²⁵ Supra note at 9 p. 283

their power based on laws enacted by the HPR which is limited only on matters listed under article 51 of the constitution. And if the HPR passes penal law on matters not listed under article 51 of the constitution it is against the constitution since it encroaches the legislative spaces of Regional States.

Practically, the penal code is enacted by the federal government which is comprehensive. As a result of its overall inclusiveness the current criminal laws is narrowed the legislative spaces of regional states, which may be understood as the power to make law is exclusively given for the federal government. Procedural law also enacted by the federal government also testify the same. This is because, by virtue of article 3(1) of the federal courts proclamation cases arising under the penal code is federal matter and to be adjudicated by the federal courts. Therefore, the assumption beyond the proclamation is that the criminal law enacted by the federal legislative body should be interpreted by federal judiciary.

The Federal Court Proclamation under article 4 enumerate the criminal jurisdiction of federal courts²⁶. Although all matters under article 4 are federal matters not all criminal cases relating to federal matters are included in the list. As a result the reading of these article in conjunction with article 12(2) and 15(2) of the same proclamation implies that matter not listed under this provision and committed outside Addis Ababa and Dire Dawa are fall under the jurisdiction of regional state courts.

Thus, generally both federal and regional court have jurisdiction on adjudication of criminal matters. Because, both the federal and state courts of any level have a constitutionally rooted foundation for their establishments. And, it is safe to interpret that the constitution contemplate federal government and states have their own judiciary, so that federal laws are adjudicated by federal courts and state laws are adjudicated by state courts. However, taking into account the highly centralized criminal legislative power by HPR or the over all inclusive nature of the criminal code, lead to say regional states courts are limited by the federal law or waived as their constitutional power to adjudicate criminal matters. Finally, it is important to mention that the issue is not contested for constitutional interpretation before the House of Federation.

²⁶ Supra note 5 at Article 4

3.2 Criminal Adjudication Jurisdiction via Constitutional Delegation

The FDRE constitution also paves the way for delegation of power to the regional courts. The Constitution has directly established the Federal Supreme Court and empowered the HPR to establish the other two tiers of Courts—the Federal High and First-Instance Courts—by two-thirds majority vote, nationwide, or in some parts of the Country only, as it deems necessary ²⁷. Until the establishment of the two orders of federal courts, the jurisdictions of the Federal High Court and of the First-Instance Courts are delegated to the State Courts²⁸.

From these constitutional provisions, we can conclude that the jurisdictions of the Federal High Court and of the First-Instance Courts are delegated to the three tiers of State Courts (the Supreme Court, High Courts and First-Instance Courts). As one judge ²⁹said the delegation of power does not extend to state first instance court. He based his argument on article 80(2) and 80(4). He concludes that state first instance court adjudicates criminal matters simply as their own and it's considered as habit. In support of this idea the president of East Wollega High Court³⁰ said that, there is no delegation of power granted for state first instance court. Practically they exercise adjudicative power as their own and no question of jurisdiction raised till now.

As one advocate of high court said delegation is given for all layers of courts at state level basing their argument on article 78(2) of the constitution. Moreover he said since delegation is designed for the purpose of effectiveness, efficiency, and accessibility of witnesses, financial capacity of parties and other public services all levels of courts should assume delegated power. This advocate bases his argument on practical necessity of delegation rather than its legal aspect. He supports his argument among others, the need of language understanding of litigants of respective regions. Consequently, we can conclude that delegation is a necessary device to empower regional courts to have jurisdiction over criminal matters which its enactment is highly centralized.

Although the Constitution provides for the delegation of the jurisdictions of the Federal High and First-Instance Courts to the State Courts, it does not stipulate how the delegation should take

²⁷Supra note 2 at Article 78(2)

²⁸ Supra note at 9 ,p.36

²⁹ An interview conducted with judge AlamayoMerga in GutoGida First Instance Court on 04/04/2009

³⁰In an interview conducted with Judge AlamayoGadissa the President of East Wollega High Court on 04/04/2009

place, and the hierarchical apportionment of criminal cases. This requires other subsidiary laws which complement the Constitution. As far as the reimbursement of financial expenditures connected with delegation is concerned, one can refer article 79(7) of the constitution which stipulate that the HPR shall allocate budget for the state Supreme Court and state high courts in dealing with the federal matters concurrently. Albeit the constitution use the term concurrently, the same is true to delegation.

In addition Art.94 (1) states that the federal and regional government shall respectively bear all financial expenditures necessary to carry out all responsibilities and functions assigned to them by law. Unless other wise agreed upon, the financial expenditures required for the carrying out of any delegated function by state shall be borne by the delegating party. This provision similarly applicable to the Courts as the criminal cases are delegated to the State Courts. Thus, the Federal Government should cover the Financial expenditures incurred by the State Courts in discharging the jurisdictions of the Federal High and First-Instance Courts more particularly, the criminal jurisdiction.

However practically speaking the financial expenditures not covered by federal rather states are shouldering the responsibility of the federal government. As East Wollega High Court President said the financial expenditures is not on its way to be covered by the federal government³¹. Contrary judge Dabalo Garba³² argues that even though the budget is not clearly given for the regional courts to cover their expense in enforcing federal laws, what the federal government grant for regional state in the annual budget also include this expense. However it is not logic to extend these grants by the federal government to cover the expenditures of states with regard to enforcing criminal law which is typical example of federal law. Therefore, the federal government should grant separate budget for regional states in enforcing federal laws.

However the power of Regional courts' jurisdiction over federal matters through delegation is not long lasting. This is because it can be extinguished when federal courts are established in the regions. Establishing the federal high court and first instance court may affect the parties on

³¹ An interview conducted with judge Alamayo Gadissa a president at East Wollega High Court which was conducted on 04/04/2009. The interviewee responded that even though the constitution provides for allocation of budget for regional state courts while they are enforcing federal laws practically speaking its not on its way to be covered by federal government.

³² An interview conduct with judge Dabalo Garba ,a judge at East Wollega High court conducted on 04/04/2009. The interviewee responded that the reimbursement of financial expenditures is included in the annual budget.

pending cases. For instance parties may not get speed trial, prolonged detention may occur before conviction, economic loss to parties and it also jeopardize the right to use one's own language.

3.3 Concurrent Criminal Adjudicative Jurisdiction via FDRE Constitution

Black's Law Dictionary defines the term "concurrent jurisdiction" as jurisdiction that might be exercised simultaneously by more than one court over the same subject matter and within the same territory, a litigant having the right to choose the court in which to file the action³³. From this definition, we could easily observe that the concept of concurrency confers on both the Federal High and First-Instance Courts on one hand and the State Supreme Court and High Courts on the other an inherent criminal adjudicative power. We would find no delegation or temporary criminal adjudication authority in the notion of judicial concurrency.

The State Supreme Court can exercise the jurisdiction of the Federal matters concurrently with the Federal High Court³⁴ which fall in the latter without prejudice to the State matters falling under the former. This holds true also to the State High Courts in the exercise of the jurisdiction of the Federal First-Instance Courts³⁵. This trend is expected to continue to exist even if the Federal Government establishes the Federal High and First-Instance Courts in the States. The constitution is not clear as to what type of crimes fall under the concurrent adjudicative jurisdiction. Which should prevail in case of conflict of jurisdiction between the Federal High and First-Instance Courts on one hand and the State Supreme and High Courts on the other respectively? These questions are answered by issuance of statutory laws by the HPR.

However the constitution is ambiguous with regard to delegation and concurrency. This is for the reason that the Caption of Art.80 of the Constitution states "Concurrent Jurisdiction of Court" but the substances of the Caption, however, go beyond the notion of judicial concurrency and tell the scope of the judicial power of the Federal and State Courts. Accordingly, the Federal Supreme Court shall have the highest and final judicial power over federal matters. It has also a power of cassation over any final court decision containing basic error of law³⁶. The State

³³Black's law dictionary, 8thed, west group, st.paul,minn.

³⁴ Supra note 2 at Article 80(2)

³⁵ Ibid at Article 80(4)

³⁶ Ibid at Article 80(3)a)

Supreme Court on the other hand, shall have the highest and final judicial power over state matters³⁷. They shall also exercise the jurisdiction of the Federal High Court. It has the power of cassation over any final court decision on state matters which contains a basic error of law³⁸. The State High Courts shall exercise the jurisdiction of the Federal First-Instance Courts in addition to state jurisdiction.

The notion of judicial concurrency under the Constitution is also contemplated in Art.79 (7) in terms of compensatory budgets³⁹. Accordingly, it is provided that the HPR shall allocate compensatory budgets for the States whose Supreme and High Courts concurrently exercise the jurisdictions of the Federal High Court and Federal First-Instance Courts. This Constitutional provision tells us something that like the judicial delegation, the judicial concurrency is also followed by a budgetary consequence. That is to say that the financial expenditures incurred by the State Supreme Court and High Courts in discharging or exercising the jurisdictions of the Federal high Court and First-Instance Courts respectively are covered by the Federal Government. This is because even though the State Supreme Court and High Courts exercise the jurisdictions of the Federal High and First-Instance Courts respectively in the concurrent capacity, the criminal cases arise from and in the Criminal Code and other federal criminal legislation, hence federal matters.

3.4 Delegation-Concurrency Dilemma under FDRE Constitution

While the Constitution has expressly stipulated and governed the notions of judicial delegation and concurrency in separate provisions, many scholars argue that the jurisdictions of the Federal High and First-Instance Courts are delegated to the State Supreme and High Courts respectively, and as a result, denying the State First-Instance Courts the power to receive and hear the criminal cases so delegated from the Federal Government⁴⁰. In their view the two terms as provided in the Constitution over the judicial power, are conceived to be one and the same. But a brief reading of the Constitution may give us the hint that the concepts of delegation and concurrency as far as the judicial power in general and criminal adjudicative jurisdiction in particular are treated

³⁷ Ibid at article 80(3)b)

³⁸ Ibid at 80(3(a)

³⁹FDRE Constitution. Article 79(7)

⁴⁰Abdi Gurmesssa, Criminal Jurisdiction of State Courts under FDRE Constitution, Addis Ababa University Master Thesis, p.136

differently and with differing terminology. True, the ordinary definitions of these terms are different as well.

Delegation is the act of entrusting another with authority or empowering another to act as an agent or representative⁴¹. This implies that upon the establishment of the Federal High and First-Instance Courts in the States, the delegation of criminal cases to the State Courts will be extinguished. As we have discussed above HPR has issued a statutory law which establishes the Federal High Court in five Regional States: Afar, Benishangul, Gambella, Somalia, and SNNP. Based on the law as it stands, the presumption is that the jurisdiction of the Federal High Court which was constitutionally delegated to the five aforementioned Regional State Supreme Courts will be terminated and the Federal High Courts commence directly exercising their jurisdiction within each State, hence ends the delegated criminal adjudicative jurisdiction of the Courts.

In sum, the delegated criminal adjudicative jurisdiction of the State Courts exists only until the establishment of the Federal High and First-Instance Courts in the Regional States⁴². On the other hand concurrency jurisdiction is jurisdiction that might be exercised simultaneously by more than one court over the same subject matter and within the same territory, a litigant having the right to choose the court in which to file the action. From this definition, we could easily observe that the concept of concurrency confers on both the Federal High and First-Instance Courts on one hand and the State Supreme Court and High Courts on the other an inherent criminal adjudicative power. We would find no delegation or temporary criminal adjudication authority in the notion of judicial concurrency. Therefore if the Constitution wants to assimilate delegation with concurrency, why does it treat them under different Articles and in different wordings? Undoubtedly, the Constitution is subject to vagueness and ambiguity as far as the notion of judicial delegation and concurrency is concerned. Therefore, the HPR is expected to make law (s) which deals with these issues differently in order to reduce or avoid the controversy, vagueness and ambiguity which may be capable of clarifying the issue.

⁴¹ Ibid at p.134

⁴² Ibid at,p.134

3.5 Criminal Jurisdiction of State First Instance Courts under FDRE

Constitution

As it has been discussed in the preceding section assimilating judicial delegation with concurrency is depriving the State First-Instance Courts from criminal jurisdiction. This is so because the State Supreme Court is delegated to adjudicate criminal cases falling under the Federal High Court and the State High Courts to adjudicate criminal cases falling under the Federal First-Instance Courts. Explained otherwise, there is no other federal court below the Federal First-Instance One which could delegate the State First-Instance Courts however it does not appear to be reasonable to prevent the State First-Instance Courts from adjudicating criminal cases. This is because of the following grounds:

Firstly, the Constitutional parlance makes it clear that the judicial delegation clause includes all the three tiers of the State Courts. This comes true when we read Art.78 (2) in isolation from that of Art.80 (2 and 4) of the Constitution.

As discussed in the above explanations, delegation and concurrency are two different concepts. It is quite difficult to use them interchangeably. Leaving the judicial concurrency to the State Supreme Court and High Courts only, we could state that the judicial delegation as envisaged by the Constitution is extended to the State First-Instance Courts. The sole reading read Art.78 (2) in isolation from that of Art.80 (2 and 4) of the Constitution show that the State First-Instance Courts can exercise the criminal jurisdictions of the Federal High and First-Instance Courts so delegated because the Constitutional delegation clause provided under article 78(2) simply provides “State Courts” and as a result, does not specify only the State Supreme Court and High Courts to exercise the jurisdictions of the federal High and First-Instance Courts respectively, thereby depriving the State First-Instance Courts of the delegated criminal jurisdiction. Thus, the delegated criminal jurisdictions of the Federal High and First-Instance Courts are exercised by the three tiers of State Courts. But the Federal Government through its legislative organ, the HPR, should enact law (s) which could determine and regulate such jurisdiction.

The Constitution excludes the State First-Instance Courts from exercising the concurrent judicial power and grants the State Supreme Court and High Courts to concurrently exercise the jurisdictions of the Federal High and First-Instance Courts respectively. In this respect, no doubt,

the State First-Instance Courts cannot exercise judicial concurrent powers with any Federal Court counterpart, the criminal jurisdiction being the typical aspect. However, state First-Instance Courts exercise delegated jurisdiction over federal matters which is not exclusively given to the Federal and State Courts concurrently⁴³. The Constitution does not have a view to excluding the State First-Instance Courts from consideration of delegated criminal jurisdiction.⁴⁴

Secondly, the human rights protection necessitates the assumption of criminal jurisdiction by the state first instance courts⁴⁵. The Constitution dictates that all Federal and State legislative, executive and judicial organs at all levels shall have the responsibility and duty to respect and enforce the human right and freedoms⁴⁶. In view of this Constitutional mandate, it is not an option but a necessity for the State First-Instance Courts to receive and entertain criminal cases so delegated to it by the Constitution as is to be complemented by other subsidiary laws. It is also clear that respecting and enforcing fundamental rights and freedoms by the judiciary in one way or another is involved in interpreting the scope and limitation of those rights and freedoms which it is bound to enforce. Almost all human rights and freedoms constitutionally guaranteed are strongly and even entirely connected with criminal laws.

Thirdly, despite the above explanations and arguments, it could not be possible to avoid the practical necessity and actual disposition of criminal cases by the State First-Instance Courts. We know also for certain that the state courts do adjudicate criminal cases in the regular discharge of judicial duties, not in their delegated powers⁴⁷. Even one might not believe that the state first instance courts exercise criminal jurisdiction in their delegated capacity because there is no such an indication. For instance there is no compensatory budget allocated for the state first instance courts which is entailed by delegation principle⁴⁸.

Fourthly, the overall Constitutional discourse and the need for introduction of federalism also necessitates and maintains the Constitutional status of the State First-Instance Courts in the

⁴³Ibid

⁴⁴ Ibid

⁴⁵ Ibid

⁴⁶Article 13(1) of FDRE constitution

⁴⁷Supra note Assefa at p 261

⁴⁸ In an interview conducted with judge Alamayo Margo, Guto Gida First Instance Court, the interviewee said that there is compensatory budget given for state first instance court while they are discharging their duties or enforcing federal laws.

assumption of criminal jurisdiction so delegated from the Federal High and First instance courts. This is because delegation is one aspects of decentralization of criminal jurisdiction of courts.

Furthermore, the Constitution establishes three tiers of courts both at the Federal and state levels, hence dual courts system. The three tiers of Courts have their respective initial and appellate jurisdictions as the case may be. This also applies *mutatis mutandis* to the criminal jurisdictions as well in whatever capacity: inherent, delegated or concurrent jurisdiction. Criminal jurisdiction is not a jurisdiction or power that is characterized by a unique feature thereby capable of causing the lack of the Constitutional status of the State First-Instance Courts over criminal cases. That is to say in as much as the Federal Courts are respected in their Constitutional status at the three levels, the State Courts at all levels should also be recognized in their Constitutional status with respect to the criminal jurisdiction taking into account the above possible justifications. Moreover there is no purpose to be served by the Constitution and other subsidiary laws if the State First-Instance Courts are to be deprived of criminal jurisdiction.

3.6 Division of Criminal Jurisdiction under Federal Proclamation

Proclamation No.25/1996 was established with a view to dealing with the judicial power of the Federal Courts in general and the criminal adjudicative jurisdiction of the same Courts in particular. The proclamation tries to put guide lines that help us to differentiate the jurisdiction of federal and state courts. Accordingly, the Proclamation has set out three apparatus for the determination of the common jurisdiction of Federal Courts⁴⁹. The first one is Law. With regard to law based, it is provided that cases involving or arising under the FDRE constitution, federal laws⁵⁰ and international treaties ratified by the HPR⁵¹ would fall under the federal courts jurisdiction. Article 2(3) of proclamation No25/96 defines federal law include all previous laws in force which are not inconsistent with the constitution and relating to matter that fall within the competence of the federal as specified in the

The second is party. In connection with party, cases involving parties specified in the Federal Laws fall under the Federal Courts. Here, the term “party” refers to litigant parties or parties to a

⁴⁹ Proclamation No.25/1996, Federal Courts Establishment ,2nd year, No.13, Negarit Gazeta, 15th February, 1996. arti.3

⁵⁰ Ibid Article 2(3) defines federal law include all previous laws in force which are not inconsistent with the constitution and relating to matter that fall within the competence of the federal as specified in the constitution .

⁵¹ FDRE Constitution, Supra note, 2 Article 55(12).

case before the courts. The third one is place. Which are these places? Are they only Addis Ababa and Dire Dawa? Art.46 (1) in conjunction with Art.47 (1) of the Constitution contemplates that the Federal Democratic Republic of Ethiopia comprises of the nine States. Art.50 (1) goes on to state that the Federal Democratic Republic of Ethiopia comprises the Federal Government and the State members⁵².

Assefa argues that according to the new proclamation⁵³ that sets up parallel federal courts across the country, federal courts will also exercise jurisdiction over cases arising in other places of the country. Thus, when we talk of the jurisdiction of the Federal Courts in relation to places it is not limited only to Addis Ababa and Dire Dawa rather it extends to regions in which federal High courts and federal first instance courts are established.

Without tricking to the principle that the Federal Courts adjudicate Federal laws and state courts adjudicate state laws, the federal government has come up with a law that provides for the criminal jurisdiction of the Federal Courts in listing method⁵⁴.

The question comes into picture therefore, that what about crimes unspecified in the Proclamation? Are they exclusively left for the State Courts? Are they concurrently exercised by the Federal and State Courts? Accordingly, different authors⁵⁵ argues that the areas that are not specifically mentioned to fall under the Federal Courts jurisdiction are presumed to be the jurisdiction of the State Courts. This implies that although the Constitution delegates the State Courts over the federal jurisdictions that fall under the Federal High and First-Instance Courts, the Proclamation enumerates only some part of the crimes to fall under the Federal Courts. This line of argument also creates the Federal Courts exclusive jurisdiction on one hand and the State

⁵² Supra note at 41

⁵³Supra note Assefa

⁵⁴55 Art.4 of proclamation No.25/96 enumerates the crimes. These are offence against the Constitutional order or against the internal security of the state, offences against foreign states, offences against the law of nations, offences against the fiscal and economic interests of the Federal Government, offences regarding counterfeit currency, offences regarding forgery of instruments of the Federal Government, offences regarding the security and freedom of communication services operating within more than one Region or at the international level, offences against the safety of aviation, offences regarding foreign nationals, offences regarding illicit trafficking of dangerous drugs, offences falling under the jurisdiction of courts of different Regions or under the jurisdiction of both the Federal and Regional Courts as well as concurrent offences, offences committed by officials and employees of the Federal Government in connection with their official responsibilities or duties

⁵⁵Assefa supra note at 1p.261

Courts exclusive judicial power on the other, concerning the jurisdictions of the two structures of Courts in relation to criminal jurisdiction. So crimes which are not enumerated under the Federal Courts belong to the exclusive jurisdiction of the state courts. Contrary to this Assefa argues that offences not mentioned in the proclamation fall under concurrent jurisdiction of federal and state courts⁵⁶. This line of argument is justified on the ground that giving exclusive jurisdiction for state courts amount to denying the federal courts to have jurisdiction over federal laws enacted by HPR and assume inherent jurisdiction.

Furthermore, the Proclamation does not have any intention of ruling out the jurisdiction of the Federal Courts by enumerating only some of the crimes enacted by the Federal Government to fall under the Federal Courts. Nor does it have an intention of having left plenty of crimes unmentioned to be presumed to fall under the State Courts thereby ruling out notion of concurrent judicial power. This may be evidenced from the wordings of Art.3 of the Proclamation. In view of these provisions, in principle, all cases related with the Constitution, Federal laws and International Treaties, parties and places specified under the Federal laws fall under the Federal Courts. This implication is actually broad as far as those jurisdictions falling under the Federal Courts with corresponding with the-Federal Legislative power is concerned. The corollary of this provision is that crimes related with the Constitution, Federal Laws, and International Treaties, parties and places mentioned in the Federal Laws fall under the Federal Courts' jurisdiction.

How can the State Courts exercise these and other powers which are not mentioned in the Proclamation? Do they have an inherent judicial power over such crimes? we have seen the overall inclusive nature the current Criminal Code which nearly exhausted all crimes involving both federal and regional characters. In such cases, the State Courts do not have an inherent judicial power over these crimes as they are called federal laws. Thus, the only legal way out will be delegation.

In principle, the State Courts have an inherent criminal adjudicative jurisdiction only over crimes enacted by state governments. Apart from this, their criminal jurisdiction in relation to criminal code and other federal legislation is limited to delegated power and state Supreme Court and high court have concurrent jurisdiction with federal first instance and federal high courts.

⁵⁶ Assefa *supra* note at 1 p.261

However the proclamation enacted subsequent to the constitution lists crimes over which federal has exclusive jurisdiction and left other crimes unmentioned. Albeit it's against the constitutional parlance, State Courts have jurisdiction concurrently and through delegation⁵⁷. The State Court do not only have delegate and concurrent jurisdiction over crimes but they only have original and inherent jurisdiction over crimes which are potentially enacted by the state government and crimes which are left uncovered by criminal code or other federal legislation by virtue of article 55(5) of the constitution.

3.7 Criminal Jurisdiction of Courts under Oromia Regional State Proclamation

In the preceding discussion, we have seen that criminal code is a typical example of federal law though it incorporate numerous crimes which are also capable of featuring regional identity, hence state crimes. Having these inclusive nature of criminal code, the federal government failed to apportioned cases between and among state courts. To fill this gap, the regional states have adopted laws that regulate the apportionment of criminal cases.

For instance, the Regional State of Oromia has adopted law⁵⁸ that establish Regional Court. This proclamation deal with the apportionment of criminal cases. The proclamation under Article 27(2)⁵⁹ states that State High Court has jurisdiction over crime whose punishment is above ten years. However the proclamation does not say any thing about the jurisdiction of state first instance court and state Supreme Court. In an interview conducted with president of East Wollega high court⁶⁰, the researchers asked the interviewee what is the jurisdiction of state first instance courts and state Supreme Court? He replied that the Oromia regional court re-establishment proclamation no.141/2000 stipulate the jurisdiction of State High Courts. He said that the implication of this provision is that, State First Instance Court has jurisdiction over crime which entails less than ten years.

With regard to the jurisdiction of Supreme Court the proclamation is confusing, hence it does not put maximum limit for the jurisdiction of High Court rather simply putting minimum punishment that is above ten years. The next question the researchers presented to the interviewee is what about crime whose minimum punishment start from less than ten years and maximum punishment is above ten years? He

⁵⁷ Supra note at 9 p.285

⁵⁸ Oromia court re-establishment proclamation No.141/2000

⁵⁹ Ibid at article 27(2)

⁶⁰ Alamayo Gadisa, president of East Wollega High court, Nekemte, Interview conducted ON 04/04/2009.

replied that there is no clear cut division in this regard but the court considers basing on the gravity of offence. The same question is presented to an advocacy at this high court⁶¹. Surprisingly; his response is the same with the president. In a nutshell, neither the federal nor the state legislation is clear enough to apportion criminal cases.

⁶¹ Interview with advocate Daraje ON 04/04/2009

Chapter Four

Conclusion and Recommendation

4.1 Conclusion

For a long period of time Ethiopian was influenced by a unitary system of government. Because of this, before the early 1990's Ethiopia's judicial system was of a monolithic structure. During that time the judicial and the administration is not separated.

After the introduction of Federalism Ethiopia's political system and organization of Ethiopian judicial system is completely changed. The 1994 FDRE constitution created a dual court structure one at the federal level and other set off court at Regional levels. Judicial power both at the Federal and State level are vested in the Courts. So, at a Federal level the Courts are the Federal Supreme Court, the Federal High Court and the Federal First Instance Court. At a State level we have the State Supreme Court, the State High Court and the State First Instance Court.

Federal courts have jurisdiction over Federal subject matters while Regional state courts exercise judicial power over State subject matters. Regional State Courts do not have exclusive or inherent judicial power over criminal cases. So, Regional state courts, particularly State Supreme and High Courts per Art. 78(2) of the FDRE Constitution are allowed to assume judicial power and function over Federal subject matters by way of delegation. Since the Regional State First Instance Courts are not delegated, they are devoid of any criminal jurisdiction. Even though the Regional State First Instance Courts are devoid of any criminal jurisdiction in light of constitutional interpretation the federal establishment proclamation try to imply the power of state first instance court to see criminal cases not given for exclusive federal court and happen outside Addis Ababa and Dire Dawa concurrently. They hear and decide criminal cases as though they themselves have jurisdiction over such matters.

With regard to apportionment of criminal matters among State Courts, neither the Federal nor the Regional legislation is sufficiently separate their jurisdiction. This create a conflict of jurisdiction over some matters.

4.2 Recommendation

First, since the FDRE constitution is provides legislative space for the Regional States to enact criminal law, the researchers recommend that, HPR should amend or enact new criminal legislation that govern only matters allotted to the federal government under Art.51 of the constitution.

On the other hand, Regional States should conduct comprehensive research so as to identify areas of law that need regional criminal legislation. Besides, the Regional states should also take steps to enact criminal law over matters reserved for them under article 52 of the constitution.

Second, since the scope of power between the Federal and Regional government is not clearly stipulated the issue has to be solved through Federal and Regional government negotiations and panel discussions concerning the issue. If the issue is not solved either the Federal government or the Regional states should have to bring the case before house of federation, for constitutional interpretation.

At Regional level, it is indispensable to enact law that clearly delaminate criminal jurisdiction of Regional courts and thereby apportionment of criminal cases among courts at each hierarchy; so that conflict of jurisdiction averted

With regard to the issue of delegation and concurrency the HPR is expected to make law (s) which clearly deals with issues differently in order to reduce or avoid the controversy, vagueness and ambiguity which complicate the issue.

The Federal government should cover the financial expenditures incurred by Regional Courts while they are enforcing criminal law which is typical Federal legislations.

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